and are obsolete; and (3) the 1958 shipping season for California plums is now underway and it is necessary that this amendatory action be immediately placed in effect in order to avoid conflicting requirements pertaining to "equivalent sizes."

This amendment shall become effective upon publication in the FEDERAL REGISTER.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: June 3, 1958.

[SEAL] S. R. SMITH,
*Director, Fruit and Vegetable Division, Agricultural Marketing Service.*

[F. R. Doc. 58-4293; Filed, June 5, 1958; 8:53 a. m.]

## TITLE 29—LABOR

### Chapter V—Wage and Hour Division, Department of Labor

PART 697—INDUSTRIES IN AMERICAN SAMOA, MINIMUM WAGE ORDER

Pursuant to section 5 of the Fair Labor Standards Act, of 1938, as amended (52 Stat. 1062, as amended; 29 U. S. C. 205), the Secretary of Labor by Administrative Order No. 502 (23 F. R. 1604), appointed, convened, and gave notice of the hearing of Special Industry Committee No. 2 for American Samoa to recommend the minimum wage rate or rates to be paid under section 6 (a) (3) of that act (70 Stat. 1118, 29 U. S. C., Supp. V, 206 (a) (3)) to employees in American Samoa, who are engaged in commerce or in the production of goods for commerce.

Subsequent to an investigation and a hearing conducted pursuant to the notice, the committee filed with the Acting Administrator a report containing its findings with respect to the matters referred to it.

Accordingly, as authorized and required by section 8 of the Fair Labor Standards Act of 1938, as amended, (52 Stat. 1064, as amended; 29 U. S. C. 208), Reorganization Plan No. 6 of 1950 (64 Stat. 1263; 3 CFR, 1950 Supp., p. 165), and General Orders Nos. 45-A (15 F. R. 3290) and 85-A (22 F. R. 7614) of the Secretary of Labor, the recommendations of the Committee are published in this order amending Part 697 of Title 29 of the Code of Federal Regulations, effective June 21, 1958, to read as follows:

Sec.
697.1 Definitions of industries in American Samoa.
697.2 Wage rates.
697.3 Notices.

AUTHORITY: §§ 697.1 to 697.3 issued under sec. 8, 52 Stat. 1064, as amended; 29 U. S. C. 208. Interpret or apply secs. 5, 6, 52 Stat. 1062, as amended; 29 U. S. C. 205, 206.

§ 697.1 *Definitions of the industries in American Samoa.* The industries in American Samoa to which this part shall apply are hereby defined as follows:

(a) *Fish canning and processing industry.* This industry shall include the canning, freezing, preserving or other processing of any kind of fish, shellfish, or other aquatic forms of animal life and the manufacture of any by-product thereof.

(b) *Shipping and transportation industry.* This industry shall include the transportation of passengers and cargo by water or by air, and all activities in connection therewith, including, but not by way of limitation, the operation of air terminals, piers, wharves and docks, including stevedoring, storage, and lighterage operations, and the operation of tourist bureaus and travel ticket agencies: *Provided, however,* That this definition shall not include bunkering of petroleum products.

(c) *Petroleum marketing industry.* This industry shall include the wholesale marketing and distribution of gasoline, kerosene, lubricating oils, diesel and marine fuels, and other petroleum products, including bunkering operations in connection therewith, and repair and maintenance of storage facilities.

(d) *Miscellaneous industries.* Miscellaneous industries shall include all operations and activities not included in the shipping and transportation industry, the petroleum marketing industry, or the fish canning and processing industry, as defined herein.

§ 697.2 *Wage rates.* (a) Wages at a rate of not less than 52 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938, by every employer to each of his employees in the fish canning and processing industry in American Samoa, who is engaged in commerce or in the production of goods for commerce.

(b) Wages at a rate of not less than 50 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938, by every employer to each of his employees in the shipping and transportation industry in American Samoa, who is engaged in commerce or in the production of goods for commerce.

(c) Wages at a rate of not less than 52 cents an hour shall be paid under section 6 of the Fair Labor Standards Act of 1938, by every employer to each of his employees in the petroleum marketing industry in American Samoa, who is engaged in commerce or in the production of goods for commerce.

(d) Wages at a rate of not less than 38 cents per hour shall be paid under section 6 of the Fair Labor Standards Act of 1938, by every employer to each of his employees in the miscellaneous industries in American Samoa, who is engaged in commerce or in the production of goods for commerce.

§ 697.3 *Notices.* Every employer subject to the provisions of § 697.2 shall post in a conspicuous place in each department of his establishment where employees subject to the provisions of § 697.2 are working such notices of this part as shall be prescribed from time to time by the Administrator of the Wage and Hour and Public Contracts Divisions of the United States Department of Labor, and shall give such other notice as the Administrator may prescribe.

Signed at Washington, D. C., this 2d day of June 1958.

CLARENCE T. LUNDQUIST,
*Acting Administrator.*

[F. R. Doc. 58-4280; Filed, June 5, 1958; 8:50 a. m.]

## TITLE 43—PUBLIC LANDS: INTERIOR

### Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1641]

[Fairbanks 013669]

ALASKA

WITHDRAWING LANDS FOR USE OF DEPARTMENT OF THE ARMY, FOR MILITARY PURPOSES

*Correction*

In Federal Register Document 58-4007, published at page 3716 in the issue for Thursday, May 29, 1958, section 26 of the land description should read as follows: "Sec. 26, N½NW¼, SW¼NW¼, NW¼SE¼NW¼, NW¼NE¼ and N½ NE¼NE¼;".

[Public Land Order 1649]

[1811067]

ALASKA

ADDING LANDS TO CHUGACH NATIONAL FOREST; RESERVING PORTION OF LANDS FOR PUBLIC RECREATION PURPOSES; REVOKING EXECUTIVE ORDER NO. 1919½ OF APRIL 21, 1914, IN PART, AND EXECUTIVE ORDER NO. 8505 OF AUGUST 7, 1940, IN ITS ENTIRETY

By virtue of the authority vested in the President by the act of June 4, 1897 (30 Stat. 11, 36; 16 U. S. C. 473) and the act of March 12, 1914 (38 Stat. 305, 307; 48 U. S. C. 304), and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Orders No. 8505 of August 7, 1940, and No. 1919½ of April 21, 1914, so far as they reserved lands within the following-described area for townsite purposes are hereby revoked:

PLACER CREEK

Beginning at a point 2 miles due west and ½ mile due north of the highest point of the most northerly knob, about 50 feet in height, on the well-defined glaciated spur between Passage Canal (Portage Bay) and Portage Glacier, this knob being approximately 1¼ miles southwest of the head of Passage Canal in approximate latitude 60°46' N., longitude 148°45' W.; thence east ½ mile, north ¼ mile, east ¼ mile, north ½ mile, east ¼ mile, north ¾ mile, west 2 miles, south 1½ miles, east 1 mile to the place of the beginning.

The area described contains approximately 1,760 acres.

2. The lands described in paragraph 1 of this order are hereby added to and made a part of the Chugach National Forest, and the boundaries of the said Forest are adjusted accordingly.

3. Subject to valid existing rights, the following-described area, which is a part of the area described in paragraph 1 of this order, is hereby withdrawn from all forms of appropriation under the public-land laws, including the mining but not the mineral-leasing laws, nor the act of July 31, 1947 (61 Stat. 681; 30 U. S. C. 601–604) as amended, and reserved under jurisdiction of the Forest Service, Department of Agriculture, as a recreation area:

PORTAGE LAKE RECREATION AREA

Beginning at a point 2 miles due west and ½ mile due north of the highest point of the most northerly knob, about 50 feet in height, on the well-defined glaciated spur between Passage Canal (Portage Bay) and Portage Glacier, this knob being approximately 1¼ miles southwest of the head of Passage Canal in approximate latitude 60°46' N., longitude 148°45' W.; thence east ½ mile, north ¾ mile, west 1½ miles, south ¾ mile, east 1 mile to the place of beginning.

The area described contains approximately 720 acres.

4. The withdrawal made by paragraph 3 of this order shall take precedence over but not otherwise affect the withdrawal for national forest purposes made by paragraph 2.

ROGER ERNST,
*Assistant Secretary of the Interior.*

MAY 29, 1958.

[F. R. Doc. 58-4258; Filed, June 5, 1958; 8:45 a. m.]

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[Public Land Order 1650]

[Idaho 05884]

IDAHO

CORRECTING PUBLIC LAND ORDER NO. 1567 OF DECEMBER 19, 1957, AND WITHDRAWING ADDITIONAL LANDS TO THOSE WITHDRAWN BY THAT ORDER

By virtue of the authority vested in the President by the act of June 4, 1897 (30 Stat. 34, 36; 16 U. S. C. 473) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. In Federal Register Document 57-10688, appearing at pages 10957–58 of the issue for Saturday, December 28, 1957, the land description under T. 36 N., R. 12 E., in connection with Lochsa River (Lewis and Clark Forest Highway 16) Roadside Zone, so far as such description refers to sec. 10, W½SE¼, is hereby corrected to read "sec. 10, W½SW¼".

2. Subject to valid existing rights, the following-described lands are hereby withdrawn from all forms of appropriation under the public land laws, including the mining but not the mineral leasing laws nor the act of July 31, 1947 (61 Stat. 681; 69 Stat. 367; 30 U. S. C. 601–604) as amended, and reserved as an addition to those withdrawn by Public Land Order No. 1567 in connection with the Lochsa River (Lewis and Clark Forest Highway 16) Roadside Zone:

BOISE MERIDIAN

NEZ PERCE NATIONAL FOREST

A strip of land 200 feet in width on each side of the center line of the Lewis and Clark Forest Highway No. 16 through the following legal subdivisions, or so much of said width as may be situated within said subdivisions:

T. 33 N., R. 7 E.,
Sec. 28, lots 1, 5, and NW¼SE¼;
Sec. 33, lots 3, 6, and 9.

ROGER ERNST,
*Assistant Secretary of the Interior.*

MAY 29, 1958.

[F. R. Doc. 58-4259; Filed, June 5, 1958; 8:46 a. m.]

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[Public Land Order 1651]

[78855]

ARKANSAS

POWER SITE RESTORATION NO. 544; PARTIALLY REVOKING EXECUTIVE ORDER OF DECEMBER 18, 1915, CREATING POWER SITE RESERVE NO. 514

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. The Executive order of December 18, 1915, creating Power Site Reserve No. 514, is hereby revoked so far as it affects the following-described lands:

FIFTH PRINCIPAL MERIDIAN

T. 19 N., R. 15 W.,
Sec. 2, NW¼NW¼SW¼ and S½NW¼SW¼;
Sec. 3, NE¼SE¼.

The areas described aggregate 70 acres.

2. The lands are located on the left bank of the White River.

3. The NE¼NW¼SW¼, section 2, is occupied by a transmission line under permit issued to the Arkansas Power and Light Company by the Department of the Army. This land is also included in the Executive order of December 18, 1915 (Power Site Reserve No. 514), but is not included in the revocation made by this order. It is included in the opening made by paragraph 5 of this order, however, but subject to the provisions of section 24 of the Federal Power Act of June 10, 1920 (41 Stat. 1075; 16 U. S. C. 818).

4. The restored lands shall be subject until 10:00 a. m., on August 28, 1958, to application by the State of Arkansas under any statute or regulation applicable thereto for rights-of-way for public highways or as a source of material for the construction and maintenance of such highways pursuant to section 24 of the act of June 10, 1920 (41 Stat. 1075; 16 U. S. C. 818), as amended.

5. This order shall not become effective to change the status of the lands described until 10:00 a. m., on July 4, 1958. At that time, the said lands, including those described in paragraph 3, shall become subject to application, petition, location and selection under the applicable public-land laws, subject to valid existing rights, the provisions of existing withdrawals, the requirements of applicable laws, the 90-day preference right period of selection afforded the State of Arkansas by paragraph 4 of this order, and the 91-day preference right filing period for veterans and others entitled to preference under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284), as amended.

6. In DA-56-Arkansas, issued March 14, 1958, the Federal Power Commission vacated the power withdrawals created pursuant to the filing of applications for preliminary permit for Project No. 1 on October 20, 1920, and for license for Project No. 654 on October 3, 1925, so far as those projects affect the lands described in paragraphs 1 and 3 of this order.

Information showing the periods during which and the conditions under which veterans and others may file applications for these lands may be obtained from the Manager, Eastern States Land Office, Bureau of Land Management, Washington 25, D. C.

ROGER ERNST,
*Assistant Secretary of the Interior.*

MAY 29, 1958.

[F. R. Doc. 58-4260; Filed, June 5, 1958; 8:46 a. m.]

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# TITLE 37—PATENTS, TRADEMARKS, AND COPYRIGHTS

## Chapter I—Patent Office, Department of Commerce

### PART 1—RULES OF PRACTICE IN PATENT CASES

MISCELLANEOUS AMENDMENTS

The following amendments are made, to take effect thirty days after publication in the FEDERAL REGISTER. Notice and public procedure are deemed unnecessary as the changes relate to a minor adjustment of fee items.

1. Paragraph (n) of § 1.21 is amended to read as follows:

(n) Search of Patent Office records for purposes not otherwise specified in this section, per hour of search or fraction thereof ..... $3.00

2. Paragraph (o) of § 1.21 is deleted.

(Sec. 1, 66 Stat. 793; 35 U. S. C. 6. Interprets or applies sec. 1, 66 Stat. 796; 35 U. S. C. 41)

[SEAL] ARTHUR W. CROCKER,
*Acting Commissioner of Patents.*

Approved: May 29, 1958.

SINCLAIR WEEKS,
*Secretary of Commerce.*

[F. R. Doc. 58-4281; Filed, June 5, 1958; 8:51 a. m.]